

26STCP01499 26STCP01499

County: los-angeles

Division: Civil Law and Motion

Department: 833

Hearing date: 2026-07-29

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Case Number: 26STCP01499 Hearing Date: July 29, 2026 Dept: 833

Green Dot Public Schools, Case No. 26STCP01499

Hearing:

July 29, 2026

v. Location:

Stanley Mosk Courthouse

Department:

833 California Department of Education, et.

al. Judge: Joseph Lipner

Order Regarding Petition

for Writ of Mandate

INTRODUCTION

Petitioner Green Dot Public Schools

("Petitioner") seeks a writ of mandate compelling Respondents California Department of Education ("CDE"), Los Angeles Unified School District ("LAUSD"), and Andres E. Chait ("LAUSD Superintendent"), in his official capacity as Acting Superintendent of Los Angeles Unified School District (all collectively, "Respondents") to comply with their respective ministerial duties by deeming and acknowledging that Petitioner's charter renewal petition for Alain Leroy Locke College Preparatory Academy ("Locke") was renewed by operation of law under California Code of Regulations, title 5, section 11966.4, subd. (c).

A preliminary question before the

Court is whether the controversy is now moot because the LACBOE has renewed Petitioner's charter. The Court does not issue a tentative ruling on this issue but asks the parties to address the following at the hearing:

The general test for mootness is well established. Courts decide only justiciable issues. (Wilson & Wilson v. City Council of Redwood City (2011) 191 Cal.App.4th 1559, 1573.) A case becomes moot when a once ripe actual controversy no longer exists due to a change in circumstances. (Ibid.) A case becomes moot if a court cannot grant practical, effective relief. (Citizens for the Restoration of L Street v. City of Fresno (2014) 229 Cal.App.4th 340, 362.) "The legal test for effective relief is whether there is a 'prospect of a remedy that can have a practical, tangible impact on the parties' conduct or legal status.'" (Delta Stewardship Council Cases (2020) 48 Cal.App.5th 1014, 1053.) Courts do not issue writs of mandate to enforce an abstract right of no practical benefit to petitioner, or where to issue the writ would be useless, unenforceable, or unavailing. (Roger v. County of Riverside (2020) 44 Cal.App.5th 510, 529-530.)

In light of this standard, the parties should address the following at hearing:

1.

Petitioner asserts that the renewal by the LACBOE, rather than by the LAUSD, subjects Petitioner to the following two negative practical effects: (1) Petitioner is required to maintain a 3% budgetary reserve under LACBOE rather than a .8% reserve under LAUSD; and (2) a renewal by LAUSD rather than LACBOE gives Petitioner two levels of administrative appellate review at a more favorable standard of review, rather than one level of administrative review solely under the abuse of discretion standard. Petitioner further asserts that the Court can still grant it complete relief by issuing a writ of mandate validating the automatic renewal by LAUSD, thus restoring the .8% reserve and the more favorable procedure for review. On what basis do Respondents contend that the matter is moot in light of these practical detriments to Petitioners? Do Respondents have any case law or other authority that a case is moot even if certain practical detriments remain in effect so long as Petitioner's main goal has been achieved?

2.

If the Court were to grant the petition for writ of mandamus, which entity would be overseeing Petitioner, and what rules would apply, pending any appeal of the Court's ruling by Respondents?